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Submitter Information

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General Comment

I am an artist, writer, and translator. My creative output and the copyrights to it that I own are fundamental to my ability to continue living. My business and those of others in my fields have already been adversely affected by AI companies' unethical and illegal use of copyright-protected intellectual property for the training of models whose explicit purpose is to replace human workers such as myself. AI absolutely cannot be given carte blanche to steal the work of human creators and violate the sanctity of their copyright protections based on the flimsy justification that the AI companies' business models cannot succeed without such widespread theft and violation.

We suffer no other industry to violate our rights in this way due to the financial burdens of their businesses, AI can be no exception. If their model cannot succeed without theft and the abrogation of creators' rights to protect their work, then the only correct outcome must be that the AI businesses fail. We exist in a capitalist system where market pressures dictate who succeeds and who fails. AI businesses have done nothing to deserve exception from this, and the harm that they have already caused—to say nothing of the further harm that a regulatory carveout sanctioning their intellectual property theft would do—has been palpably felt in my community.

Hold AI businesses to the same standard as all other individuals and businesses are held. Do not give them unfettered access to publicly posted creative works normally subject to copyright protections. Let them bear the same burden to ethically and legally support their business that all other Americans do. Basic fairness and the sanctity of the rule of law demands no less.